

26STCV18928 26STCV18928

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 26STCV18928 Hearing Date: August 21, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV18928

NIKI

BJAZEVIC vs AMERICAN HONDA MOTOR CO., INC., et al.

August

21, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF NIKI BJAZEVIC'S MOTION FOR PREFERENCE IN TRIAL SETTING.

RULING:

The Court grants the Motion.

Final Status Conference

is scheduled for 11/05/2026 at 09:00 AM in Department 311 at Stanley Mosk Courthouse.

Jury Trial is scheduled

for 11/16/2026 at 09:30 AM in Department 311 at Stanley Mosk Courthouse.

Parties shall comply with

the Court's Trial Preparation Order available online at LACourt.CA.Gov on the Courtroom Information page for Dept. 311

Plaintiff to give notice.

I.

BACKGROUND

On June 12, 2026, NIKI

BJAZEVIC (Plaintiff) filed a Complaint against AMERICAN HONDA MOTOR CO., INC., MICHELLE TRACY, and ELIZABETH POTHAST (Defendants), listing Causes of Action for:

1.

UNLAWFUL HARASSMENT OF EMPLOYEE BATTLING
CANCER

2.

UNLAWFUL DISCRIMINATION AGAINST EMPLOYEE
BATTLING CANCER

3.

FAILURE TO ACCOMMODATE EMPLOYEE BATTLING
CANCER

4.

FAILURE TO ENGAGE IN THE INTERACTIVE
PROCESS WITH EMPLOYEE BATTLING CANCER

5.

UNLAWFUL RETALIATION AGAINST EMPLOYEE

BATTLING CANCER IN VIOLATION OF THE FAIR EMPLOYMENT AND HOUSING ACT

6.

UNLAWFUL INTERFERENCE AND RETALIATION IN
VIOLATION OF THE CALIFORNIA FAMILY RIGHTS ACT

7.

AGE DISCRIMINATION

8.

WRONGFUL TERMINATION (FORCED RETIREMENT)
IN VIOLATION OF PUBLIC POLICY

9.

FAILURE TO PREVENT HARASSMENT,
DISCRIMINATION AND RETALIATION

10.

AIDING AND ABETTING FEHA VIOLATIONS

11.

NEGLIGENT HIRING, SUPERVISION AND
RETENTION

12.

INTENTIONAL INFLICTION OF EMOTIONAL
DISTRESS

13.

UNLAWFUL BUSINESS PRACTICES.

Plaintiff alleges that,

instead of engaging in the interactive process and reasonably accommodating
Plaintiff while undergoing chemotherapy, Defendants
pressured Plaintiff to quickly retire from employment, and ultimately processed
a unilaterally coerced retirement

On July 17, 2026, Plaintiff
filed the Motion for Preferential Trial Setting, which “requests that the Court

grant preference under Code of Civil Procedure section 36(d) or, in the alternative, section 36(e), and set this matter for trial at the earliest available date." (Motion, 2:26-28.)

Defendants advocate denying or alternatively request sufficient time before trial to conduct discovery and to file motions.

II.

LEGAL STANDARD

Judges have discretion to grant preferential trial settings where there is competent, clear and convincing evidence that a party suffers from a terminal illness and there is substantial doubt as to survival beyond six months. (Code Civ. Proc., § 36, subd. (d).)

A court has no discretion to delay a trial setting after a motion for trial preference is granted. (Miller v. Superior Court (1990) 221 Cal.App.3d 1200, 1204; and Sprowl v. Superior Court (1990) 219 Cal.App.3d 777, 781.) After a court grants a motion for trial preference, then it is required to set trial for within 120 days, without any discretion, to avoid depriving the qualifying litigant of substantive rights that Code of Civil Procedure section 36, subdivision (a) is designed to protect. (Pabla v. Superior Court (2023) 90 Cal.App. 5th 599, 601, 603 ["a declaration from petitioner explaining she was 73 years old, and suffered from asthma and hypertension, had recently undergone kidney surgery and was receiving dialysis. Real party in interest Dual Arch International, Inc., raised concerns regarding completing discovery and pretrial motions under such an accelerated schedule,..."].) If a party meets the standard for calendar preference based on being over age 70 and health, under Code of Civil Procedure section 36, subdivision (a), then trial preference must be granted without any weighing of opposing interests in having adequate time to prepare for trial. (Fox v. Superior Ct. (2018) 21 Cal.App.5th 529, 535, fn. 3 ["the preference motion here, which was made eleven months into the case, seeking a trial date within 120 days of that, allowed plenty of time for discovery and trial preparation."].)

III.

ANALYSIS

Plaintiff makes the

Motion for Preferential Trial Setting, on grounds that Plaintiff suffers from a serious, aggressive, and unpredictable illness that raises substantial medical doubt about his survival beyond six months.

Defendants advocate

denying, or setting trial for the week of November 16, 2026, and emphasize the need for, “a schedule that permits completion of essential discovery, preserves Defendants’ ability to seek appropriate dispositive relief, and sets trial sufficiently late within the section 36(f) period to allow the parties to prepare this matter for adjudication on a fully developed record.” (Opposition, 8:24-27.)

Some cases indicate that

there may be a due-process violation by setting trial so early that defendants are deprived of a reasonable opportunity for discovery or pretrial preparation. (E.g., *Roe v. Superior Court* (1990) 224 Cal.App.3d 642, 643.)

Here, the Court finds

that Plaintiff suffers from a terminal illness and there is substantial doubt as to survival beyond six months.

Therefore, the Court sets

a trial date that allows Defendants a sufficient opportunity for defense preparation.

IV.

CONCLUSION

The Court grants the Motion,
as specified herein.